MINISTRY OF HUMAN RESOURCE DEVELOPMENT

(UNIVERSITY GRANTS COMMISSION)

NOTIFICATION

New Delhi, the 12th February, 2018

UNIVERSITY GRANTS COMMISSION [CATEGORISATION OF UNIVERSITIES (ONLY) FOR GRANT OF GRADED AUTONOMY] REGULATIONS, 2018

F. No. 1-8-2017(CPP-II).—The following is published for general information :—

Preamble

Whereas University Grants Commission (UGC) is mandated to determine, promote and maintain the standards of higher education in higher educational institutions (HEIs);

Whereas, UGC recognizes the need to create an enabling environment whereby HEIs can become institution of global excellence;

Whereas, UGC recognizes that autonomy is pivotal to promoting and institutionalizing excellence in higher education and that the regulatory framework needs to facilitate better performing institutions towards excellence in higher education.

Therefore, in exercise of the powers conferred by clause (j) of Section 12 read with clause (g) of sub-section (1) of Section 26 of the University Grants Commission Act, 1956, the University Grants Commission hereby makes the following regulations:-

1. Short title, application and commencement –

(1) These regulations shall be called the University Grants Commission (Categorization of Universities (only) for Grant of Graded Autonomy) Regulations, 2018.

(2) They shall apply to all universities established or incorporated by or under a Central Act, a Provincial Act, or a State Act and any Institution Deemed to be University under Section 3 of UGC Act, 1956.

(3) They shall come into force from the date of their notification in the Official Gazette of India.

2. Definitions–

In these regulations, unless the context otherwise requires—

(a) "Accreditation" means the process of quality control in higher education, whereby, as a result of evaluation or assessment or by any other scientific method followed by recognized accreditation agencies, an HEI or programme(s) conducted therein is recognised as conforming to benchmarked parameters of academic quality;

(b) "Assessment" means the process involved in ascertaining or verifying the capabilities of an HEI in terms of its physical infrastructure, human resources (including faculty), administration, course curricula, admission and student evaluation procedures and governance structure prior to the commencement of its academic programmes;

(c) "Commission" means the University Grants Commission as defined in the University Grants Commission Act, 1956;

(d) "CGPA" means cumulative grade point average grading system as followed by NAAC or any other Assessment and Accreditation Agencies (AAA) recognized by the Commission under relevant UGC regulations, while granting accreditation;

(e) "National Assessment and Accreditation Council (NAAC)" means the body established by the Commission to assess and accredit HEIs in the country;

(f) "Open & Distance Learning" mode means a mode of providing flexible learning opportunities by overcoming separation of teacher and learner using a variety of media, including print, electronic, online and occasional interactive face-to-face meetings with the presence of an HEI or Learner Support Services to deliver teaching-learning experiences, including practical or work experiences;

(g) "Times Higher Education/QS Rankings" means annual publication of university rankings by Times Higher Education (THE) magazine and by Quacquarelli Symonds (QS);

(h) "University" means University established or incorporated by or under a Central Act, a Provincial Act or a State Act, and includes an institution deemed to be university;

Words and expressions used and not defined in these regulations but defined in the University Grants Commission Act, 1956 and not consistent with these regulations shall have the meanings respectively assigned to them in that Act.

3. Framework for Categorization of Universities for Grant of Graded Autonomy

The Commission shall categorize Universities into following three categories i.e. Category-I, Category-II and Category-III based on the parameters laid down in sub-clauses (i), (ii) and (iii) and as notified by the Commission through detailed guidelines from time to time.

(i) Category-I University:

University shall be in Category-I if

a. It has been accredited by NAAC with a score of 3.51 or above; or

b. It has received a corresponding accreditation grade/score from a reputed accreditation agency empanelled by the UGC; or

c. It has been ranked among top **500** of reputed world rankings, such as Times Higher Education or QS.

(ii) Category-II University:

University shall be in Category-II if

a. It has been accredited by NAAC with a score of 3.26 and above, upto 3.50; or

b. It has received a corresponding accreditation grade/score from a reputed accreditation agency empanelled by the UGC;

(iii) Category-III University:

University shall be in Category-III if it does not come either under Category-I or Category-II.

4. Dimensions of Autonomy for Category-I Universities

4.1 Universities shall be automatically deemed to be under section 12B of the University Grants Commission Act, 1956 and no inspections by the Commission shall be required for the same.

4.2 Universities may start a new course/programme/department/school/centre in disciplines that form a part of its existing academic framework without approval of the UGC, provided no demand for fund is made from the government on account of starting the new course/programme/department/school/ centre. Degree programs shall be consistent with the approved nomenclature of the UGC. Diploma and certificate courses approved by its Statutory Authorities or Statutory Regulatory Authorities wherever required, may be started in new and innovative areas that are relevant to local, national or international needs, with information to the UGC :

Provided that for Government owned Deemed to be Universities, approval shall be taken from the Government if funding is sought from the Government for starting a new course/programme/ department/school in self-financing mode.

4.3 Universities may open constituent units/off-campus centres within its geographical jurisdiction, without the approval of the UGC, provided it is able to arrange both recurring and non-recurring revenue sources and does not need any assistance for the same from the UGC or the Government.

4.4 Universities may start skill courses, consistent with the National Skills Qualification Framework, without approval of the UGC, provided no demand for fund is made from the government on account of starting the new courses. Degree programmes shall be consistent with the approved nomenclature of UGC. Diploma and certificate courses approved by its Statutory Authorities or Statutory Regulatory Authorities wherever required, may be started in new and innovative areas that are relevant to local, national or international needs, with information to the UGC.

4.5 Universities may open research parks, incubation centres, university society linkage centres, in self-financing mode, either on its own or in partnership with private partners, without approval of Commission. However, in all such arrangements, the ownership of all immovable property and that component of movable property procured through the resources of the Institution shall remain with the University.

4.6 Universities, subject to the Rules, Regulations and Guidelines of Government of India, may hire, without approval of the Commission, foreign faculty having taught at any institution appearing in top five hundred of any of the world renowned ranking frameworks, such as the Times Higher Education World University Rankings or the QS Rankings, upto twenty percent over and above of their total sanctioned faculty strength. Universities will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

4.7 Universities shall be free to admit foreign students on merit, subject to a maximum of twenty percent, over and above of the strength of their approved domestic students. Universities would be free to fix and charge fees from foreign students without any restriction.

4.8 Universities, while following the pay scales as laid down by the Commission, shall build in an incentive structure to attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from Commission or Government funds. Such incentive structure shall be strictly merit based with clear defined, transparent and objective criteria and shall not be universal. It must necessarily be approved by both the Academic Council and the Finance Committee of the Institution, apart from Statutory Bodies like Senate/Syndicate/Executive Council, as the case may be. The Commission shall be informed of the incentive structure within thirty days of approval by the statutory bodies of the Institution.

4.9 Universities may engage in academic collaborations with foreign educational institutions, as per the UGC (Promotion and Maintenance of Standards of Academic Collaboration between Indian and Foreign Educational Institutions) Regulations, 2016, without approval of the Commission with foreign institutions in top 500 of Times Higher Education World University Rankings or QS Rankings or top 200 of discipline specific ranking in Times Higher Education World University Rankings or QS Rankings.

4.10 Universities may offer courses in the Open and Distance Learning mode, without approval of the Commission, provided it satisfies all the conditions laid down under UGC (Open and Distance Learning) Regulations, 2017 and amendments from time to time.

4.11 Universities shall be exempted from annual monitoring of their off-campus centre(s) and / or the study centre(s), as stipulated under Section 3.3 of the UGC (Establishment of and Maintenance of Standards in Private Universities) Regulations, 2003 as amended /modified from time to time, except when there is substantive evidence of their not meeting basic minimum criteria or of irregularities or malpractices.

4.12 In case there is any external review required by the Commission under any statute or executive order, then it would be sufficient that the institution sends a report to the Commission in a prescribed review format.

5. Dimensions of Autonomy for Category-II Universities

5.1 Universities may start a new course/programme department/school/centre in disciplines that form a part of its existing academic framework without approval of the UGC, provided no demand for fund is made from the government on account of starting the new course/programme/department/school/ centre. Degree programs shall be consistent with the approved nomenclature of the UGC. Diploma and certificate courses approved by its Statutory Authorities or Statutory Regulatory Authorities wherever required, may be started in new and innovative areas that are relevant to local, national or international needs, with information to the UGC :

Provided that for Government owned Deemed to be Universities, approval shall be taken from the Government if funding is sought from the Government for starting a new course/programme/ department/school in self-financing mode.

5.2 While according permission of starting off campus centers by Institutions Deemed to be Universities, no inspection of the Commission shall be required. This concession shall be subjected to opening two off-campus centres in every five years and as stipulated in the UGC (Deemed to be Universities) Regulations, 2016 and amendments, if any, from time to time.

5.3 Universities may start skill courses, consistent with the National Skills Qualification Framework, without approval of the UGC, provided no demand for fund is made from the government on account of starting the new courses. Degree programmes shall be consistent with the approved nomenclature of UGC. Diploma and certificate courses approved by its Statutory Authorities or Statutory Regulatory Authorities wherever required, may be started in new and innovative areas that are relevant to local, national or international needs, with information to the UGC.

5.4 Universities, subject to the Rules, Regulations and Guidelines of the Government of India, may hire, without approval of the Commission, foreign faculty having taught at any institution appearing in top five hundred of any of the world renowned ranking frameworks, such as the Times Higher Education World University Rankings or the QS Rankings, upto twenty percent over and above of their total sanctioned faculty strength. Universities will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

5.5 Universities, while following the pay scales as laid down by the Commission, shall build in an incentive structure to attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from Commission or Government funds. Such incentive structure shall be strictly merit based with clear defined, transparent and objective criteria and should not be universal. It must necessarily be approved by both the Academic Council and the Finance Committee of the Institution, apart from Statutory Bodies like Senate/Syndicate/Executive Council, as the case may be. The Commission shall be informed of the incentive structure within thirty days of approval by the statutory bodies of the Institution.

5.6 Universities shall be free to admit foreign students on merit subject to a maximum of twenty percent, over and above of the strength of their approved domestic students. Universities would be free to fix and charge fees from foreign students without any restriction.

5.7 Universities may offer courses in the Open and Distance Learning mode, with approval of the Commission, provided it satisfies all the conditions laid down under UGC (Open and Distance Learning) Regulations, 2017 and amendments from time to time.

5.8 In case there is any external review required by the Commission under any statute or executive order, than the review can be done by the institution itself through external peer review mechanism wherein the per team members shall be chosen by the institution themselves from representatives of Category-I Universities, and the review report shall be sent to the commission after completion of the review.

6. Change in Category of Universities for non-maintenance of accreditation score or ranking as defined in Clause 3.

6.1 Universities under Category-I and Category-II shall continue to be in their respective categories as long as they maintain the required parameters related to accreditation score or international ranking as defined in Clause 3, as the case may be, for that category.

6.2 It shall be incumbent upon university to intimate the Commission its changed status within thirty days of such a change.

6.3 If university fails to maintain status in a category and moves down to a lower category, it shall not be entitled to enjoy any privileges already accorded to it from the day of such downgrading :

Provided that any kind of initiatives taken under the privileges associated with erstwhile higher status shall be permitted to continue till their approved duration / logical conclusion, provided that the activity / action initiated has been communicated previously to the UGC :

Provided further that if such university regains back its earlier higher status, the privileges of that higher category shall be restored from the day the status is changed.

7. Procedure for Categorization of Universities

7.1 The Commission shall fix dates (at least two times in a year, preferably 1st of June and 1st of December) by which an institution shall submit a request in prescribed format for categorization under these Regulations. The dates so fixed shall be notified at least six months in advance.

7.2 All such applications shall be scrutinized by the Commission and orders on Categorization shall be passed within thirty days from the last date specified for the receipt of such applications. During this period, the Commission shall also place such application on its website.

8. **Change in parameters/requirements, if any, for eligibility under category-I or category-II of Universities.**

Whenever there is a change in the categorization parameters as detailed in Regulation (3) above, it shall be notified by the UGC separately.

9. **Graded Autonomy Regulations vis-à-vis other Regulations**

The provisions mentioned in the clause 4 and 5 of the Regulations i.e. dimensions of autonomy for Category-I Universities and Category-II Universities respectively, shall prevail in case of any inconsistent/conflicting provisions in the other UGC Regulations.

10. **Removal of Difficulties**

UGC reserves the right to remove difficulty/difficulties in the course of implementation of these Regulations in consultation with the Government of India /Ministry of Human Resource Development.

P. K. THAKUR, Secy.

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